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No. 19–1044. *BATISTA FERREIRA v. BARR, ATTORNEY GENERAL*. C. A. 1st Cir. Certiorari denied. Reported below: 939 F. 3d 44.

No. 19–1052. *DEWBERRY v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 936 F. 3d 803.

No. 19–1066. *COMCAST CORP. ET AL. v. TILLAGE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 569.

No. 19–1078. *AT&T MOBILITY LLC ET AL. v. MCARDLE*. C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 575.

No. 19–1165. *WILLIS v. TOWER LOAN OF MISSISSIPPI, LLC*. C. A. 5th Cir. Certiorari denied. Reported below: 944 F. 3d 577.

No. 19–1185. *WILDING ET AL. v. DNC SERVICES CORP. ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 941 F. 3d 1116.

No. 19–6939. *HUNT v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 806.

No. 19–7043. *TOTH v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 624.

No. 19–7127. *TOMLIN v. PATTERSON, WARDEN*. C. A. 11th Cir. Certiorari denied.

No. 19–7361. *SHEVTSOV v. UNITED STATES*;

No. 19–7368. *KUZMENKO v. UNITED STATES*; and

No. 19–7729. *NEW v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 272.

No. 19–7481. *MURPHY v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–7706. *ADAMS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 198.

No. 19–7738. *H. K. V. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 19–7739. *H. K. V. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Sup. Ct. Fla. Certiorari denied.

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No. 19–7751. *THRASHER v. ALABAMA*. Ct. Crim. App. Ala. Certiorari denied.

No. 19–7799. *BAKER v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied.

No. 19–8095. *MCCANTS v. HANSEN ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–8101. *MAMONE v. PLOWS BURCH*. Ct. Sp. App. Md. Certiorari denied. Reported below: 242 Md. App. 766 and 774.

No. 19–8112. *ALI v. OBERLANDER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FOREST, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8114. *WHITE v. SOUTHEAST MICHIGAN SURGICAL HOSPITAL ET AL.* Ct. App. Mich. Certiorari denied.

No. 19–8116. *WHITE v. MATTHEWS ET AL.* Ct. App. Mich. Certiorari denied.

No. 19–8118. *WISCONSIN EX REL. WREN v. RICHARDSON, WARDEN*. Sup. Ct. Wis. Certiorari denied. Reported below: 2019 WI 110, 389 Wis. 2d 516, 936 N. W. 2d 587.

No. 19–8119. *WILLIAMS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 19–8123. *BROWN AKA ANKH EL v. SUPERIOR COURT OF INDIANA, MARION COUNTY, ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–8128. *BUCKNER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 945 F. 3d 906.

No. 19–8132. *CHEST v. BALD, JUDGE, CIRCUIT COURT OF ILLINOIS, STEPHENSON COUNTY*. Sup. Ct. Ill. Certiorari denied.

No. 19–8140. *DENNERLEIN v. GARMAN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ROCKVIEW, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8141. *COWAN v. GASTELO, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 381.

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No. 19–8142. *SARHAN ET UX. v. H & H INVESTORS, INC.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied.

No. 19–8143. *DOUCE AL DEY v. BREVARD COUNTY TAX COLLECTOR ET AL.* Dist. Ct. App. Fla., 5th Dist. Certiorari denied.

No. 19–8150. *JACKSON v. KANSAS CITY KANSAS PUBLIC SCHOOLS UNIFIED SCHOOL DISTRICT No. 500.* C. A. 10th Cir. Certiorari denied. Reported below: 799 Fed. Appx. 586.

No. 19–8152. *ANKH-EL, AKA BROWN v. CARTER ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–8167. *TALBERT v. CARNEY ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8168. *JUSTISE v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 129 N. E. 3d 839.

No. 19–8177. *KEYS v. FLORIDA.* Dist. Ct. App. Fla., 2d Dist. Certiorari denied.

No. 19–8180. *M. H. v. INDIANA DEPARTMENT OF CHILD SERVICES.* Sup. Ct. Ind. Certiorari denied. Reported below: 134 N. E. 3d 41.

No. 19–8258. *GOREE v. MICHIGAN PAROLE BOARD.* C. A. 6th Cir. Certiorari denied.

No. 19–8287. *TOURE v. CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 916.

No. 19–8304. *MCVAY v. ILLINOIS.* App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2019 IL App (3d) 150821, 139 N. E. 3d 648.

No. 19–8326. *MARTIN v. MARYLAND.* Ct. Sp. App. Md. Certiorari denied. Reported below: 242 Md. App. 775.

No. 19–8344. *COMBS v. NEVADA ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8353. *STOKES v. INDIANA.* Ct. App. Ind. Certiorari denied.

No. 19–8366. *CABEZAS v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

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No. 19–8380. *MONDS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 945 F. 3d 1049.

No. 19–8381. *O'DONNELL v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 182.

No. 19–8382. *EWING v. NEVADA*. Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 641, 452 P. 3d 933.

No. 19–8385. *LOPEZ QUINTERO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 335.

No. 19–8387. *CALDWELL v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–8390. *DO KYUN KIM v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 490.

No. 19–8391. *COFFMAN v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2019 IL App (4th) 170115–U.

No. 19–8393. *TUCKER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 963.

No. 19–8399. *TOLLIVER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 949 F. 3d 244.

No. 19–8400. *NICHOLS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 802 Fed. Appx. 172.

No. 19–8401. *LEWIS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 744.

No. 19–8411. *BURTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 802 Fed. Appx. 896.

No. 19–8412. *MCLEAN v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–8415. *STANLEY v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–8416. *WILLIAMS v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 799 Fed. Appx. 657.

No. 19–8423. *GIES v. OHIO*. Ct. App. Ohio, 1st App. Dist., Hamilton County. Certiorari denied. Reported below: 2019–Ohio–4249, 146 N. E. 3d 1277.

No. 19–831. *JARCHOW ET AL. v. STATE BAR OF WISCONSIN ET AL.* C. A. 7th Cir. Certiorari denied.

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THOMAS, J., dissenting

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, dissenting.

A majority of States, including Wisconsin, have “integrated bars.” Unlike voluntary bar associations, integrated or mandatory bars require attorneys to join a state bar and pay compulsory dues as a condition of practicing law in the State. Petitioners are practicing lawyers in Wisconsin who allege that their Wisconsin State Bar dues are used to fund “advocacy and other speech on matters of intense public interest and concern.” App. to Pet. for Cert. 10. Among other things, petitioners allege that the Wisconsin State Bar has taken a position on legislation prohibiting health plans from funding abortions, legislation on felon voting rights, and items in the state budget. Petitioners’ First Amendment challenge to Wisconsin’s integrated bar arrangement is foreclosed by *Keller v. State Bar of Cal.*, 496 U.S. 1 (1990), which this petition asks us to revisit. I would grant certiorari to address this important question.

In *Abood v. Detroit Bd. of Ed.*, 431 U.S. 209 (1977), the Court held that a law requiring public employees to pay mandatory union dues did not violate the freedom of speech guaranteed by the First Amendment, *id.*, at 235–236. In *Keller*, the Court extended *Abood* to integrated bar dues based on an “analogy between the relationship of the State Bar and its members, on the one hand, and the relationship of employee unions and their members, on the other.” 496 U.S., at 12. Applying *Abood*, the Court held that “[t]he State Bar may . . . constitutionally fund activities germane to [its] goals” of “regulating the legal profession and improving the quality of legal services” using “the mandatory dues of all members.” 496 U.S., at 13–14.

Two Terms ago, we overruled *Abood* in *Janus v. State, County, and Municipal Employees*, 585 U.S. 878 (2018). We observed that “*Abood* was poorly reasoned,” that “[i]t has led to practical problems and abuse,” and that “[i]t is inconsistent with other First Amendment cases and has been undermined by more recent decisions.” *Id.*, at 886. After considering arguments for retaining *Abood* that sounded in both precedent and original meaning, we held that “States and public-sector unions may no longer extract agency fees from nonconsenting employees.” 585 U.S., at 929.

Our decision to overrule *Abood* casts significant doubt on *Keller*. The opinion in *Keller* rests almost entirely on the framework

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of *Abood*. Now that *Abood* is no longer good law, there is effectively nothing left supporting our decision in *Keller*. If the rule in *Keller* is to survive, it would have to be on the basis of new reasoning that is consistent with *Janus*.*

Respondents argue that our review of this case would be hindered because it was dismissed on the pleadings. But any challenge to our precedents will be dismissed for failure to state a claim, before discovery can take place. And in any event, a record would provide little, if any, benefit to our review of the purely legal question whether *Keller* should be overruled.

Short of a constitutional amendment, only we can rectify our own erroneous constitutional decisions. We have admitted that *Abood* was erroneous, and *Abood* provided the foundation for *Keller*. In light of these developments, we should reexamine whether *Keller* is sound precedent. Accordingly, I respectfully dissent from the denial of certiorari.

No. 19–8156. *STANCU v. HYATT CORP.* C. A. 5th Cir. Certiorari denied. JUSTICE BREYER took no part in the consideration or decision of this petition. Reported below: 791 Fed. Appx. 446.

Rehearing Denied

No. 19–690. *NEVILLE v. DHILLON, CHAIR, EQUAL EMPLOYMENT OPPORTUNITY COMMISSION, ET AL.*, 589 U. S. 1305;

No. 19–994. *HILL v. JOHNSON ET AL.*, 589 U. S. 1305;

No. 19–7354. *MARTIN v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION*, 589 U. S. 1282;

No. 19–7496. *STRONER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 1298; and

No. 19–7708. *ALJINDI v. UNITED STATES ET AL.*, 589 U. S. 1308. Petitions for rehearing denied.

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Certiorari Granted—Vacated and Remanded

No. 19–623. *SHRINIVAS SUGANDHALAYA LLP v. SETTY ET AL.* C. A. 9th Cir. Certiorari granted, judgment vacated, and case

*Respondents resist this conclusion by citing *Harris v. Quinn*, 573 U. S. 616 (2014), which predates *Janus*. But all we said in *Harris* was that “a refusal to extend *Abood*” would not “call into question” *Keller*. *Harris*, 573 U. S., at 655. Now that we have overruled *Abood*, *Keller* has unavoidably been called into question.

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remanded for further consideration in light of *GE Energy Power Conversion France SAS v. Outokumpu Stainless USA, LLC*, 590 U. S. 432 (2020). Reported below: 771 Fed. Appx. 456.

No. 19–5990. *VOGEL v. UNITED STATES*. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Banister v. Davis*, 590 U. S. 504 (2020).

Certiorari Dismissed

No. 19–8153. *BROOKS v. SCHWARTZ ET AL.* C. A. 10th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). JUSTICE GORSUCH took no part in the consideration or decision of this motion and this petition.

Miscellaneous Orders

No. 19M140. *MARIN GUTIERREZ v. UNITED STATES*. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 18–1401. *PETERSON v. LINEAR CONTROLS, INC.* C. A. 5th Cir. Joint motion to defer consideration of petition for writ of certiorari granted.

No. 19–631. *BARR, ATTORNEY GENERAL, ET AL. v. AMERICAN ASSOCIATION OF POLITICAL CONSULTANTS, INC., ET AL.* C. A. 4th Cir. [Certiorari granted, 589 U. S. 1127.] Motion of ACA International, Inc., for leave to file brief as *amicus curiae* out of time denied.

No. 19–7403. *SHOVE v. DAVIS, WARDEN*. C. A. 9th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 1273] denied.

No. 19–8179. *IN RE NICHOLS*. Petition for writ of habeas corpus denied.

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No. 19–8475. *IN RE WATSON*. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court’s Rule 39.8.

No. 19–8205. *IN RE BRUNSON*. Petition for writ of mandamus denied.

Certiorari Granted

No. 19–863. *NIZ-CHAVEZ v. BARR, ATTORNEY GENERAL*. C. A. 6th Cir. Certiorari granted. Reported below: 789 Fed. Appx. 523.

Certiorari Denied

No. 19–685. *MCGREGOR v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–747. *LOPEZ GAMERO v. BARR, ATTORNEY GENERAL*. C. A. 7th Cir. Certiorari denied. Reported below: 929 F. 3d 464.

No. 19–855. *LUGO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 766.

No. 19–875. *OTO, L. L. C. v. KHO ET AL.* Sup. Ct. Cal. Certiorari denied. Reported below: 8 Cal. 5th 111, 447 P. 3d 680.

No. 19–889. *KAUFMAN COUNTY, TEXAS, ET AL. v. WINZER, INDIVIDUALLY AND ON BEHALF OF THE STATUTORY BENEFICIARIES OF WINZER, ET AL.; and*

No. 19–1042. *WINZER, INDIVIDUALLY AND ON BEHALF OF THE STATUTORY BENEFICIARIES OF WINZER v. KAUFMAN COUNTY, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied.

No. 19–901. *DEVON DRIVE LIONVILLE, LP, ET AL. v. PARKE BANK ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 791 Fed. Appx. 301.

No. 19–997. *WILLIKY v. SECURITIES AND EXCHANGE COMMISSION*. C. A. 7th Cir. Certiorari denied. Reported below: 942 F. 3d 389.

No. 19–1054. *PIKE v. GROSS, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 936 F. 3d 372.

No. 19–1069. *TAKEDA PHARMACEUTICAL CO. LTD. ET AL. v. PAINTERS AND ALLIED TRADES DISTRICT COUNCIL 82 HEALTH*

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CARE FUND ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 943 F. 3d 1243.

No. 19–1070. OLSON *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 655 Pa. 511, 218 A. 3d 863.

No. 19–1084. CRAMER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 153.

No. 19–1180. RADCLIFFE ET AL. *v.* EXPERIAN INFORMATION SOLUTIONS, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 605.

No. 19–1182. SMITH LAND CO. ET AL. *v.* HERHOLD ET AL. Ct. App. Ohio, 9th App. Dist., Summit County. Certiorari denied. Reported below: 2019-Ohio-2418.

No. 19–1190. SLOAN *v.* SLOAN ET AL. Sup. Ct. S. C. Certiorari denied.

No. 19–1193. WILKINSON *v.* COMMISSION FOR LAWYER DISCIPLINE OF THE STATE BAR OF TEXAS. Ct. App. Tex., 9th Dist. Certiorari denied.

No. 19–1197. GWANJUN KIM *v.* CITY OF IONIA, MICHIGAN, ET AL. C. A. 6th Cir. Certiorari denied.

No. 19–1200. ELLIOTT *v.* OHIO. Ct. App. Ohio, 5th App. Dist., Guernsey County. Certiorari denied. Reported below: 2019-Ohio-4411.

No. 19–1205. LUCERO *v.* GORDON ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 833.

No. 19–1219. RESPECT WASHINGTON *v.* BURIEN COMMUNITIES FOR INCLUSION ET AL. Ct. App. Wash. Certiorari denied. Reported below: 10 Wash. App. 2d 1013.

No. 19–1227. KERNS ET AL. *v.* CATERPILLAR, INC. C. A. 6th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 568.

No. 19–1239. JACKSON RIDGE REHABILITATION AND CARE ET AL. *v.* MEADOWS. Ct. App. Ohio, 5th App. Dist., Stark County. Certiorari denied. Reported below: 2019-Ohio-2879.

No. 19–1240. HUBBARD *v.* MISSOURI DEPARTMENT OF MENTAL HEALTH. C. A. 8th Cir. Certiorari denied.

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No. 19–1271. *COLLINS v. ZOLNIER*. Ct. App. Tex., 9th Dist. Certiorari denied.

No. 19–7076. *PONDER v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 625.

No. 19–7153. *JOHNSON v. MISSOURI*. Sup. Ct. Mo. Certiorari denied.

No. 19–7165. *MACIAS-MACIAS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–7451. *ROGERS v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied.

No. 19–7469. *PALAMARCHUK v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7472. *LEWIS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 358.

No. 19–7637. *ROMERO CRUZ v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 660.

No. 19–7872. *WILDER v. KREBS*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 198.

No. 19–8103. *RUBI IBARRA v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 420.

No. 19–8134. *EZELL v. HININGER ET AL.* C. A. 10th Cir. Certiorari denied.

No. 19–8138. *WOOLSEY-ROSS v. WOOLSEY ET AL.* Sup. Ct. Va. Certiorari denied.

No. 19–8157. *RICHARDSON v. MOORE*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 208.

No. 19–8159. *RAMIREZ v. ALLBAUGH, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS*. C. A. 10th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 458.

No. 19–8164. *TOLEN v. NORMAN, WARDEN*. C. A. 8th Cir. Certiorari denied.

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No. 19–8165. *WINTERS v. INDUSTRIAL COMMISSION OF ARIZONA ET AL.* Sup. Ct. Ariz. Certiorari denied.

No. 19–8170. *REYNOLDS v. NORTH CAROLINA.* Ct. App. N. C. Certiorari denied. Reported below: 263 N. C. App. 595, 822 S. E. 2d 330.

No. 19–8174. *MATA v. MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION.* App. Ct. Mass. Certiorari denied. Reported below: 94 Mass. App. 1122, 123 N. E. 3d 802.

No. 19–8176. *LANE v. ALABAMA.* Ct. Crim. App. Ala. Certiorari denied.

No. 19–8182. *MOSS v. ARIZONA.* Ct. App. Ariz. Certiorari denied.

No. 19–8183. *NOGALES v. CALIFORNIA.* Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied.

No. 19–8185. *SCOTT v. CALIFORNIA.* C. A. 9th Cir. Certiorari denied.

No. 19–8186. *STATON v. SUPERINTENDENT, LEE CORRECTIONAL INSTITUTION.* C. A. 4th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 204.

No. 19–8189. *RAMOS v. CONNECTICUT.* App. Ct. Conn. Certiorari denied. Reported below: 194 Conn. App. 594, 221 A. 3d 909.

No. 19–8195. *CHARLES v. BRADSHAW, SHERIFF, PALM BEACH COUNTY, FLORIDA.* C. A. 11th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 991.

No. 19–8198. *ADKINS v. WHOLE FOODS MARKET GROUP, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 217.

No. 19–8201. *HOUSEHOLDER v. PENNSYLVANIA.* Super. Ct. Pa. Certiorari denied.

No. 19–8202. *GOUGH v. BANKERS LIFE & CASUALTY CO.* C. A. 4th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 251.

No. 19–8203. *HUNT v. OHIO.* Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-4053, 145 N. E. 3d 1214.

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No. 19–8206. *BUSH v. OHIO*. Ct. App. Ohio, 7th App. Dist., Mahoning County. Certiorari denied. Reported below: 2019-Ohio-4082.

No. 19–8209. *FOYE v. NORTH CAROLINA*. C. A. 4th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 757.

No. 19–8210. *GORDON v. HOLY CROSS HOSPITAL GERMAN-TOWN, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 84.

No. 19–8213. *RODRIGUEZ v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8217. *JONES v. MCKEE FOODS CORP.* C. A. 8th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 76.

No. 19–8226. *PHIPPS v. RAEMISCH, EXECUTIVE DIRECTOR, COLORADO DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 561.

No. 19–8227. *CARRIER v. COLORADO*. Ct. App. Colo. Certiorari denied.

No. 19–8245. *PETERS v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 19–8264. *GORDON v. ARKANSAS*. Sup. Ct. Ark. Certiorari denied. Reported below: 2019 Ark. 344, 588 S. W. 3d 342.

No. 19–8270. *JOHNSON v. FLORIDA BAR*. Sup. Ct. Fla. Certiorari denied.

No. 19–8286. *TIGER v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 289 So. 3d 484.

No. 19–8297. *O’CONNELL v. ZATECKY*. C. A. 7th Cir. Certiorari denied.

No. 19–8301. *MOCCO v. SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8311. *DALEN v. FEDERAL NATIONAL MORTGAGE ASSOCIATION ET AL.* Ct. App. S. C. Certiorari denied.

No. 19–8319. *WATSON v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 288 So. 3d 1.

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No. 19–8322. *DIXON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–8362. *MITCHELL v. CALIFORNIA.* Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 19–8363. *MCCLAIN v. SHARP, WARDEN.* C. A. 4th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 238.

No. 19–8371. *HAM v. WILLIAMS, WARDEN.* C. A. 4th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 543.

No. 19–8379. *BURGESS v. ILLINOIS.* App. Ct. Ill., 1st Dist. Certiorari denied.

No. 19–8422. *GLENN v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 410.

No. 19–8431. *CRUZ-LOPEZ v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 349.

No. 19–8437. *WILSON v. ILLINOIS.* App. Ct. Ill., 1st Dist. Certiorari denied.

No. 19–8440. *O’NEAL v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 513.

No. 19–8447. *DAVIS v. THOMAS ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–8451. *SKINNER v. MADDEN, WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 19–8453. *DOBBS v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 802 Fed. Appx. 466.

No. 19–8463. *MAYEA-PULIDO v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 946 F. 3d 1055.

No. 19–8464. *MITCHELL v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 435.

No. 19–8468. *SHUFFORD v. UNITED STATES.* C. A. 6th Cir. Certiorari denied.

No. 19–8469. *VIENGXAY CHANTHARATH v. UNITED STATES.* C. A. 8th Cir. Certiorari denied.

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No. 18–6172. *WILLIAMS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 709 Fed. Appx. 676.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 18–7575. *VALDES GONZALEZ v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 915.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–5267. *ST. HUBERT v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 909 F. 3d 335.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

The Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA) imposes several restrictions on inmates seeking to file a second or successive habeas petition. See 28 U. S. C. §§ 2244, 2255. Among other things, the inmate must first seek leave from a court of appeals, which may not authorize a filing unless the inmate demonstrates, as a *prima facie* matter, that the petition will be based either on new evidence sufficient to establish that no reasonable factfinder would have found the defendant guilty or on a new constitutional rule made retroactive on collateral review. §§ 2244(b)(2), (3); § 2255(h). An order denying authorization “shall not be appealable and shall not be the subject of a petition for rehearing or for a writ of certiorari.” § 2244(b)(3)(E). But an inmate seeking such authorization from the Court of Appeals for the Eleventh Circuit faces even greater hurdles.

Unlike its sister circuits, the Eleventh Circuit has interpreted the relevant statutes to mandate an authorization decision within 30 days, leaving the court little time to consider a complex inmate application. *In re Williams*, 898 F. 3d 1098, 1102 (2018) (Wilson, J., concurring). Under Eleventh Circuit rules, the applicant must confine his or her entire legal argument to a form on which “[f]ew prisoners manage to squeeze more than 100 words.” 918 F. 3d

1174, 1198 (2019) (Wilson, J., dissenting from denial of reh'g en banc). That limited form is the only submission that the court typically accepts: The Government seemingly “never files a responsive pleading,” and the court never grants oral argument. *Ibid.* Surprisingly still, this perfunctory process affects future claimants too, and not only those who find themselves in the second or successive petition posture. The Eleventh Circuit has published several of its orders denying permission to file a second or successive petition, and determined that *all* future litigants (including those on direct appeal) are bound to the holdings of these orders unless and until an en banc Eleventh Circuit or this Court says otherwise. See 909 F.3d 335, 346 (2018).

These factors make out a troubling tableau indeed. Most importantly, they raise a question whether the Eleventh Circuit's process is consistent with due process. The Eleventh Circuit has not yet appeared to address a procedural due process claim head on, so I will leave it to that court to consider the issue in the first instance in an appropriate case. In the meantime, nothing prevents the Eleventh Circuit from reconsidering its practices to make them fairer, more transparent, and more deliberative.

I

Petitioner Michael St. Hubert and several other petitioners¹ have had their direct appeals or initial habeas petitions decided based on binding precedent issued through the above-mentioned process. I describe the course faced by St. Hubert, as it is representative of the process for many petitioners.

St. Hubert was convicted of two counts of brandishing a firearm during a crime of violence under 18 U.S.C. § 924(c). The putative “crimes of violence” underlying these convictions were Hobbs Act robbery and attempted Hobbs Act robbery, both in violation of 18 U.S.C. § 951. Under § 924(c), St. Hubert faced increased sentencing exposure and was sentenced to consecutive terms of 300 months' imprisonment on one count and 84 months' imprisonment on another.

¹ *Williams v. United States*, No. 18-6172; *Gonzalez v. United States*, No. 18-7575; *Robinson v. United States*, No. 19-5451; *Mack v. United States*, No. 19-6355; *Boston v. United States*, No. 19-7148; *Hunt v. United States*, No. 19-7506; *Smith v. United States*, No. 19-7527; *Alston v. United States*, No. 19-7672.

On direct appeal, St. Hubert argued that his Hobbs Act crimes were not “crime[s] of violence” under § 924(c).² After many twists and turns, the Eleventh Circuit disagreed. 909 F. 3d, at 345–346. The Court of Appeals held both that the residual clause, § 924(c)(3)(B), was not void for vagueness—a holding that this Court rejected in *United States v. Davis*, 588 U.S. 445 (2019)—and that St. Hubert’s Hobbs Act crimes constituted crimes of violence under the elements clause, § 924(c)(3)(A). In holding that Hobbs Act robbery was a crime of violence under the elements clause, the Eleventh Circuit noted that it “ha[d] already” reached that conclusion in prior cases. 909 F. 3d, at 345. But those precedents were not fully briefed direct appeals subject to adversarial testing; instead, they were denials of applications seeking authorization to file second or successive habeas petitions. *Ibid.* (citing *In re Saint Fleur*, 824 F. 3d 1337, 1340–1341 (CA11 2016), and *In re Colon*, 826 F. 3d 1301, 1305 (CA11 2016)). The court rejected St. Hubert’s objection that orders resolving such applications should not be binding precedent. It declared that published three-judge orders resolving second or successive habeas petitions under § 2255 are “binding precedent on *all* subsequent panels of this Court, including those reviewing direct appeals and collateral attacks, ‘unless and until [they are] overruled or undermined to the point of abrogation by the Supreme Court or by this court sitting *en banc*.’” 909 F. 3d, at 346.

The Eleventh Circuit declined to rehear *en banc* St. Hubert’s case. 918 F. 3d, at 1174. Several judges dissented, explaining the many “grave problems” with the Eleventh Circuit’s perfunctory practices surrounding applications to file second or successive habeas petitions. *Id.*, at 1197 (opinion of Wilson, J). As one judge explained, “[i]t is an aberration that a statute meant to govern the treatment of inmates who seek to file a second or successive § 2255 motion now serves as a tool for this Court to limit the review of prison sentences on direct appeal.” *Id.*, at

²Section 924(c) defines a crime of violence as a felony that “has as an element the use, attempted use, or threatened use of physical force against the person or property of another,” § 924(c)(3)(A), or, “that by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense,” § 924(c)(3)(B). The first clause is known as the elements clause; the second is known as the residual clause. See *United States v. Davis*, 588 U.S. 445, 449 (2019).

1200–1201 (Martin, J., dissenting). In those judges’ view, the court’s procedures stymied its “ability to administer justice to the people who come before” it. *Id.*, at 1200.

II

“The courts of appeals have significant authority to fashion rules to govern their own procedures.” *Cardinal Chemical Co. v. Morton Int’l, Inc.*, 508 U.S. 83, 99 (1993). Under Federal Rule of Appellate Procedure 47(b), moreover, the Courts of Appeals may adopt local rules and internal operating procedures consistent with applicable federal law and “may regulate practice in a particular case in any manner consistent with federal law, [the FRAP], and local rules of the circuit.” But the Eleventh Circuit is significantly out of step with other courts in how it approaches applications seeking authorization to file second or successive habeas petitions.

First, compared to other Courts of Appeals, the Eleventh Circuit publishes far more of its orders denying authorization. From 2013 to 2018, the Eleventh Circuit published 45 such orders, while all of the other Circuits combined published 80. *Williams*, 898 F. 3d, at 1102 (Wilson, J., concurring). Second, other Circuits generally do not treat the relevant statute as mandating a decision within 30 days. *Ibid.* Finally, many other Circuits “often consider briefing from the government before issuing a published order; some also entertain oral argument from both parties.” *Id.*, at 1103. The Eleventh Circuit, by contrast, does not grant oral argument in any noncapital cases; nor does the court typically receive individualized briefs from the petitioner or the Government before decision. *Ibid.* Making matters worse, the court often decides the merits of the habeas claims sought to be presented in the second or successive habeas petition, when the statutory question at the preliminary authorization stage is simply whether the applicant has “ma[de] a prima facie showing that the application satisfies” the authorization requirements, § 2244(b)(3)(C). See 918 F. 3d, at 1203 (Martin, J., dissenting from denial of reh’g en banc).³

³ In the certificate-of-appealability (COA) context, where an inmate must make a threshold “substantial showing of the denial of a constitutional right,” § 2253(c)(2), this Court has cautioned that the threshold inquiry is “not coextensive with a merits analysis” and that any court that “[j]ustif[ies] its denial of a COA based on its adjudication of the actual merits . . . is in

In sum, the Eleventh Circuit represents the “worst of three worlds.” *Williams*, 898 F. 3d, at 1104. It “publish[es] the most orders,” “adhere[s] to a tight timeline that the other circuits have disclaimed,” and “do[es] not ever hear from the government before making [its] decision.” *Ibid.* In this context, important statutory and constitutional questions are decided (for all future litigants) on the basis of fewer than 100 words of argument. See 918 F. 3d, at 1196 (opinion of Wilson, J).

Notably, this Court has been wary of affording full precedential weight to its own decisions based on so little argument. The Court has explained, for example, that “summary action” in this Court without merits briefing or oral argument “does not have the same precedential effect as does a case decided upon full briefing and argument.” *Gray v. Mississippi*, 481 U.S. 648, 651, n. 1 (1987) (citing *Edelman v. Jordan*, 415 U.S. 651, 671 (1974)). Further, as “part of our ‘deep-rooted historic tradition that everyone should have his own day in court,’” *Richards v. Jefferson County*, 517 U.S. 793, 798 (1996), issue preclusion can bind a nonparty to a suit only when certain minimum requirements, consistent with due process, have been met, *id.*, at 798–799; see also *Taylor v. Sturgell*, 553 U.S. 880 (2008).

To be sure, this case rests not on issue preclusion but on *stare decisis*, and implicates not this Court’s practices but the precedential weight another court grants to its own opinions. But these doctrines stem from a common concern: Decisions that bind other litigants should, at the very least, be based on more than minimal briefing. That animating principle, in turn, casts doubt on the Eleventh Circuit’s practices at issue here.

Before the Eleventh Circuit addresses a procedural due process challenge to its practices, there are many steps that the court could take to make its process fairer. It could, for example, solicit fuller briefing on those (relatively few) applications that present open questions of law. It could even allow limited oral argument for the thorniest of questions presented through those applications (especially questions that may affect many future litigants). And it could afford precedential value only to those or-

essence deciding an appeal without jurisdiction,” *Buck v. Davis*, 580 U.S. 100, 115 (2017) (quoting *Miller-El v. Cockrell*, 537 U.S. 322, 336–337 (2003)). This principle provides yet another reason, apart from the due process issues that petitioners focus on, to doubt the Eleventh Circuit’s practices.

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ders resulting from a robust process. Regardless of what the Due Process Clause requires, these procedures would better accord with basic fairness—and would ensure that those like *St. Hubert* would not spend several more years in prison because of artificially imposed limitations like 100 words of argument.

No. 19–5451. *ROBINSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 520.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–6355. *MACK v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–7148. *BOSTON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 939 F. 3d 1266.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–7506. *HUNT ET AL. v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 941 F. 3d 1259.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–7527. *SMITH v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 882.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

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No. 19–7672. *ALSTON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 659.

JUSTICE SOTOMAYOR, respecting the denial of certiorari.

I concur for the reasons set out in *St. Hubert v. United States*, 590 U. S. 984 (2020) (SOTOMAYOR, J., statement respecting denial of certiorari).

No. 19–8166. *WILLIAMS v. NAJI ET AL.* C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 19–8467. *MCLENDON v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition. Reported below: 944 F. 3d 255.

Rehearing Denied

No. 19–7692. *R. A. S. v. MONTGOMERY COUNTY CHILDREN AND YOUTH SERVICES*, 590 U. S. 909. Petition for rehearing denied.

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Certiorari Granted—Vacated and Remanded. (See also *Andrus v. Texas*, 590 U. S. 806 (2020) (*per curiam*).)

No. 19–966. *EMERSON ELECTRIC CO. v. SIPCO, LLC*. C. A. Fed. Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Thryv, Inc. v. Click-To-Call Technologies, LP*, 590 U. S. 45 (2020). Reported below: 939 F. 3d 1301.

No. 19–7919. *KING v. UNITED STATES*. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 771 Fed. Appx. 449.

Miscellaneous Orders

No. 19M141. *GUTIERREZ v. CALIFORNIA*. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 19M142. *MEHDIPOUR v. DENWALT-HAMMOND ET AL.* Motion to direct the Clerk to file petition for writ of certiorari out of time denied.